

Rajesh Yadav v. State of U.P.

Allahabad High Court · Division Bench · 15 July 2022 · WRIT - C No. - 18815 of 2022 · **Writ disposed; petitioner relegated to Para 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

A writ against a recovery citation under Section 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 was disposed of without merits. The consumer was given liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the distribution licensee is to decide that objection after hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Rajesh Yadav challenged a recovery citation dated 23 July 2021 issued by the recovering officer for penalties of Rs. 2,33,096 imposed by the power distribution corporation, under Section 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958. He also sought a mandamus to decide an application said to be pending before the corporation. Counsel for the licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection-to-demand

HOLDING

A writ against a recovery citation under the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 may be disposed of without examining merits by granting liberty to file an objection under Para 6.8 of the Supply Code, 2005, to be decided in accordance with law after hearing, with coercive recovery stayed pending that decision. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court relegated the challenge to the recovery citation to a Para 6.8 objection before the distribution licensee, with a time-bound decision and interim stay of coercive action, without expressing any opinion on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY CITATION DATED 23.07.2021 AND THE PENALTIES OF RS. 2,33,096

Writ disposed of without expressing any opinion on merits. ¶ 1

NOT DECIDED — THE APPLICATION SAID TO BE PENDING BEFORE THE DISTRIBUTION CORPORATION

¶ 1